

25STCV33358 25STCV33358

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-11

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Case Number: 25STCV33358 Hearing Date: September 11, 2026 Dept: 510

No. 4 – Ayse Cetinkaya v. Villanoink

LLC

Plaintiff

Ayse Cetinkaya's Request for Default Judgment

Plaintiff Ayse Cetinkaya requests

court judgment by default against Defendant Villanoink LLC. Plaintiff's application for default has several defects.

Excessive Damages

Plaintiff requests

default judgment for damages of \$120,000; this includes \$45,000 in compensatory damages for loss of earnings and \$75,000 for pain and suffering/emotional

distress damages. This improperly exceeds the amount demanded in the complaint. "A default judgment greater than the amount

specifically demanded in the complaint is void as beyond the court's

jurisdiction." (Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.

(2018) 23 Cal.App.5th 1013, 1018 (Airs Aromatics).) "Where no amount of

damages is demanded any amount awarded is by definition greater than the amount

demand." (Falahati v. Kondo (2005) 127 Cal.App.4th 823, 830-831.) The

complaint's prayer for relief does not specify any amount of damages. (See

Compl., prayer, at p. 19.) Plaintiff's service of a statement of damages in

Defendant does not cure this defect. "[A] statement of damages does not satisfy

section 580 if the case does not involve personal injury or wrongful death." (Airs

Aromatics, supra, 23 Cal.App.5th at p. 1013.) This is not a personal

injury case.

To recover the damages

Plaintiff requests, she must amend the complaint to specifically demand that amount. Doing so would vacate Defendant's default. After a plaintiff "file[s] an amended complaint praying for a different amount of damages and/or other appropriate relief... she must serve her amended complaint on defendants, who will be entitled to file a new answer; all issues will then be at large, including liability." (Greenup v. Rodman (1986) 42 Cal.3d 822, 830; accord *Airs Aromatics*, supra, 23 Cal.App.5th at p. 1025 [filing amended complaint vacates default].) Any amended complaint must be served in the manner of a summons. (*Engbretson & Co. v. Harrison* (1981) 125 Cal.App.3d 436, 444.)

Amount of Damages

Plaintiff presents

insufficient evidence showing she suffered \$75,000 in emotional distress/pain and suffering damages. It is also unclear why \$45,000 was chosen as an amount to compensate Plaintiff for lost wages. There are no authenticated exhibits showing Plaintiff's wage statements or declarations attesting to how she suffered this specific amount in lost wages.

Excessive Attorney Fees

Plaintiff seeks excessive

attorney fees. Attorney fees for a default judgment are generally limited to a specified schedule based on the amount of damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover "a fee greater than listed in the [default] schedule because of extraordinary services." (Rule 3.214(d).) Plaintiff's proposed judgment includes a request for \$25,671.76 in attorney fees. That is far greater than the schedule, which provides for attorney fees of "\$2,890 plus 1% of the excess over \$100,000" for judgments over \$100,000. (Rule 3.214(a).) Plaintiff does not show extraordinary services justifying a greater fee.

Pre-Judgment Interest

Plaintiff requests

prejudgment interest at the annual rate of 10%, but did not include interest computations to support her request. Plaintiff must provide "[i]nterest computations as necessary." (Cal. Rules of Court, rule

3.1800(a)(3).) Such computations require identifying the principal amount, beginning date, end date, and interest rate.

In addition,

it is not clear to the Court how violations of the Labor Code would justify a 10% prejudgment interest rate. This 10% prejudgment interest rate is only available for claims based on breach of contract. All other claims are entitled to a 7% interest rate. (See Civil Code § 3287; Cal. Const. Art. 15 § 1.)

Disposition

Plaintiff's request for default judgment is denied without prejudice.

The Court hereby vacates the default of Defendant Villanoink LLC.